

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201701964	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 03/13/2017 3:50 AM	Location of Incident: Northeast corner of 6th Avenue and 65th Street; 68th Precinct stationhouse	18 Mo. SOL 9/13/2018	Precinct: 68
Date/Time CV Reported Tue, 03/14/2017 7:10 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 03/14/2017 7:10 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alexi Serpani	03257	942535	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alexi Serpani	Abuse: At the northeast corner of 6th Avenue and 65th Street in Brooklyn, Sergeant Alexi Serpani threatened § 87(2)(b) with the use of force.	A . Substantiated
B . SGT Alexi Serpani	Discourtesy: At the 68th Precinct stationhouse, Sergeant Alexi Serpani acted discourteously toward § 87(2)(b)	B . Substantiated
C . SGT Alexi Serpani	Discourtesy: At the 68th Precinct stationhouse, Sergeant Alexi Serpani spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SGT Alexi Serpani	Discourtesy: At the 68th Precinct stationhouse, Sergeant Alexi Serpani acted discourteously toward § 87(2)(b)	D . Substantiated

Case Summary

On March 14, 2017, § 87(2)(b) filed this complaint with the CCRB via email (**01 Board Review**).

On March 13, 2017, at approximately 3:50 AM, § 87(2)(b) was driving a taxi in the vicinity of 6th Avenue and 65th Street in Brooklyn, when he was stopped by Sergeant Alexi Serpani of the 68th Precinct. Sgt. Serpani told § 87(2)(b) that he was being stopped because he had a pair of dice hanging from his rearview mirror that were obstructing his view. Sgt. Serpani asked § 87(2)(b) for his TLC license, and § 87(2)(b) informed Sgt. Serpani that he did not have a TLC license. Sgt. Serpani told § 87(2)(b) that he could not drive a cab without a TLC license, and told him to step out of his vehicle. § 87(2)(b) told Sgt. Serpani that every other time he had been stopped for driving without a TLC license, he had been issued a summons, and allowed to continue to drive. Sgt. Serpani informed § 87(2)(b) that he had an open warrant for driving without a TLC license, and told § 87(2)(b) that if he did not step out of his vehicle, he could be tazed (**Allegation A**). § 87(2)(b) exited his vehicle, and was transported to the 68th Precinct Stationhouse by PO Thomas Smith. § 87(2)(b) was lodged in a holding cell. Sgt. Serpani allegedly entered the holding cell area with a copy of § 87(2)(b) arrest history and told § 87(2)(b) that he had one open warrant, and eight previous arrests (**Allegation B**). Sgt. Serpani allegedly told § 87(2)(b) that if he had shut the “fuck” up, he would not have been arrested (**Allegation C**). § 87(2)(g) § 87(2)(b) and § 87(2)(b) § 87(2)(b) father and wife respectively, arrived at the 68th Precinct stationhouse to retrieve § 87(2)(b) belongings. Sgt. Serpani spoke to § 87(2)(b) while holding § 87(2)(b) arrest history, and asked § 87(2)(b) if she knew that § 87(2)(b) had been arrested, if § 87(2)(b) had “mental problems,” and if people from jail wrote letters to § 87(2)(b) (**Allegation D**).

§ 87(2)(b) was arrested and charged with § 87(2)(b) (**09 Board Review**).

This case has no video evidence.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On June 27, 2017, a Notice of Claim Inquiry from the NYC Comptroller's Office returned negative results (**12 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) (**11 Board Review**) and § 87(2)(b) (**10 Board Review**) have been party.
- Sgt. Serpani has been a member of service for ten years and has three previous allegations against him, with no substantiations. Sgt. Serpani has one previous allegation of discourtesy, word, and one previous allegation of discourtesy, gesture.

Findings and Recommendations

Allegation A –Abuse of Authority: At the northeast corner of 6th Avenue and 65th Street in Brooklyn, Sergeant Alexi Serpani threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

§ 87(2)(b) Sgt. Serpani stated that § 87(2)(b) had dice hanging from his rearview mirror obstructing his view, and § 87(2)(b) disputes this. § 87(2)(b) and Sgt. Serpani both stated that after Sgt. Serpani pulled § 87(2)(b) over, that § 87(2)(b) informed Sgt. Serpani he did not have TLC license. Sgt. Serpani told § 87(2)(b) that he could not continue driving his vehicle, and that he should contact his company to have a different driver take the vehicle. § 87(2)(b) refused, and told Sgt. Serpani that on the other occasions he had interacted with police regarding driving without a TLC license, that he had been issued summonses. Sgt. Serpani instructed § 87(2)(b) to exit his vehicle, and § 87(2)(b) refused. Sgt. Serpani returned to his vehicle and ran § 87(2)(b) name. Sgt. Serpani learned that § 87(2)(b) had an open warrant for not paying a previously issued summons for operating a cab without a TLC license. Sgt. Serpani re-approached § 87(2)(b) vehicle, instructed him to exit the vehicle, and told him that he was under arrest because of the warrant. § 87(2)(b) yelled at Sgt. Serpani that he refused to exit the vehicle. Sgt. Serpani instructed § 87(2)(b) to exit the vehicle again, and § 87(2)(b) refused again. Sgt. Serpani stated that while § 87(2)(b) was verbally refusing to exit the vehicle, his hands were reaching towards the center console. § 87(2)(b) did not have anything in his hands. Sgt. Serpani did not know why § 87(2)(b) reached towards the center console. Sgt. Serpani told § 87(2)(b) that if he did not exit the vehicle, he could be Tazed. § 87(2)(b) immediately stepped out of the vehicle, put his hands behind his back, and was handcuffed by Sgt. Serpani.

Sgt. Serpani (**06 Board Review**) stated that he informed § 87(2)(b) that he could be Tazed in accordance with the patrol guide procedure in regards to the use of Tazers. Sgt. Serpani's understanding of the patrol guide procedure is that a Tazer can be used when a person is resisting arrest by verbally communicating that they are not going to cooperate.

Patrol Guide Procedure 221-08 states that a Conducted Electrical Weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or another person(s) actually present... It is prohibited to use a CEW in situations that do not require the use of physical force (**07 Board Review**).

§ 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegation A** be **Substantiated**.

Allegation B: Discourtesy: At the 68th Precinct stationhouse, Sergeant Alexi Serpani acted discourteously toward § 87(2)(b)

§ 87(2)(b) (**02 Board Review**) stated that while he was lodged in the holding cells inside of the 68th Precinct stationhouse Sgt. Serpani entered the holding cell area holding his arrest history and told § 87(2)(b) that he had been arrested nine previous times. § 87(2)(b) was inside of the

holding cells with one other individual, § 87(2)(b) and § 87(2)(b) did not know each other. § 87(2)(b) told Sgt. Serpani that he should not be talking about his arrest history, especially in front of other civilians. Sgt. Serpani told § 87(2)(b) that he could talk about it, and that the conversation was being recorded. § 87(2)(b) told Sgt. Serpani again to stop talking about his arrest history.

On April 17, 2017, § 87(2)(b) (**04 Board Review**) provided a telephone statement to the investigation. § 87(2)(b)'s primary language is Spanish. § 87(2)(b) stated that he was in the holding cell before § 87(2)(b) and that when § 87(2)(b) entered, he had a calm demeanor. Shortly after § 87(2)(b) entered the holding cell, Sgt. Serpani entered with a stack of papers, and began talking to § 87(2)(b) about how he had been arrested before. § 87(2)(b) became very upset. After Sgt. Serpani left, § 87(2)(b) told § 87(2)(b) that the papers Sgt. Serpani had been holding were his arrest history, and that he did not know why Sgt. Serpani was looking at it.

Sgt. Serpani (**06 Board Review**) stated that when he returned to the 68th Precinct stationhouse, he went to the holding cells to check on § 87(2)(b) condition. § 87(2)(b) asked Sgt. Serpani to tell him how many times he had been arrested, and how many warrants he had. Sgt. Serpani agreed, and printed out § 87(2)(b) arrest history. Sgt. Serpani informed § 87(2)(b) that he had been arrested eight previous times and had one open warrant. § 87(2)(b) became upset, and told Sgt. Serpani that he was looking at arrests that were made when he was a minor, and that Sgt. Serpani had no right to look at them. § 87(2)(b) told Sgt. Serpani that he knew his rights, and that he was going to contact CCRB and sue him. Sgt. Serpani exited the holding cell area.

Sgt. Serpani also stated that he would have informed § 87(2)(b) if he had more than one open warrant at the arrest location.

§ 87(2)(g)
[REDACTED]

Patrol Guide Procedure 203-09 states that officers must be courteous and respectful (**13 Board Review**).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **Substantiated**.

Allegation C: Discourtesy- At the 68th Precinct stationhouse, Sergeant Alexi Serpani spoke discourteously to § 87(2)(b)

§ 87(2)(b) (**02 Board Review**) stated that after Sgt. Serpani printed his arrest history and spoke to him about it, he told § 87(2)(b) that he would not have been arrested if he had shut the “fuck” up.

§ 87(2)(b)'s primary language is Spanish. He did not recall if he heard Sgt. Serpani say shut the “fuck” up to § 87(2)(b) (04 Board Review).

Sgt. Serpani (06 Board Review) stated that he did not tell § 87(2)(b) that he would not have been arrested if he shut the “fuck” up.

§ 87(2)(g)
Therefore, it is recommended that
Allegation D be Unsubstantiated.

Allegation D: Discourtesy- At the 68th Precinct stationhouse, Sergeant Alexi Serpani acted discourteously toward § 87(2)(b)

§ 87(2)(b) (03 Board Review) stated that when she and Everado § 87(2)(b) arrived at the stationhouse to claim § 87(2)(b) belongings, Sgt. Serpani asked her if she knew that § 87(2)(b) had been previously arrested, if he had “mental problems,” and if people wrote him letters from jail. Sgt. Serpani was carrying papers while speaking with § 87(2)(b) and he told her that the papers were § 87(2)(b) arrest history.

On May 17, 2017, Everado § 87(2)(b) (05 Board Review) provided a telephone statement. Everado § 87(2)(b) primary language is Spanish. He had no verbal interaction with Sgt. Serpani. Everado § 87(2)(b) was upset with Sgt. Serpani because Sgt. Serpani would only release the vehicle § 87(2)(b) had been driving, and not his cell phone or wallet. Sgt. Serpani was carrying papers in his hand while speaking with § 87(2)(b) and asked § 87(2)(b) if § 87(2)(b) mistreated or “beat” her.

Sgt. Serpani (06 Board Review) did not recall whether he discussed § 87(2)(b) arrest history with § 87(2)(b) and did not recall asking her whether § 87(2)(b) had “mental problems,” or if people wrote to him from jail. Sgt. Serpani recalled speaking to § 87(2)(b) about § 87(2)(b) belongings, and explaining to her that he could only release the vehicle, and not the cell phone or wallet. Sgt. Serpani did not recall if he was holding § 87(2)(b) arrest history during this interaction.

§ 87(2)(g)
Therefore, it is recommended that
Allegation D be Unsubstantiated.

Patrol Guide Procedure 203-09 states that officers must be courteous and respectful (13 Board Review).

§ 87(2)(g)
Therefore, it is recommended that
Allegation D be Substantiated.

Squad: 12

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date